
Appeal Decision

Site visit made on 15 June 2026

by K Craddock BA (Hons) MAUD MRTPI

an Inspector appointed by the Secretary of State

Decision date: 25 August 2026

Appeal Ref: 6006388

Hall Farm, Copt Oak Road, Copt Oak, Charley, Leicestershire LE12 9XL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Mark Massarella against the decision of North West Leicestershire District Council.
 - The application Ref is 25/01015/FUL.
 - The development proposed is the use of former groom's accommodation as independent dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The description of development above is taken from the planning application form. During the course of the planning application the description of development was amended to include reference to 'associated works' to encompass surface water drainage mitigation measures.
3. A revised version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The changes to the Framework do not affect the merits of this case in a material way and I, therefore, have not consulted the parties with regard to these changes.

Main Issue

4. The main issue is whether the appeal site is in a suitable location for housing, having regard to the Council's spatial strategy, the relevant development plan policies and the proximity of services and sustainable modes of transport.

Reasons

5. The appeal relates to a stone outbuilding located within a courtyard of similar outbuildings and adjacent to a steel framed storage building at Hall Farm. Hall Farm comprises two dwellings, Hall Farm and Manor Farm, accessed via a long private drive off the B591, surrounded by farmland.
6. The development plan for the area comprises the North West Leicestershire Local Plan (2021) (LP). Policy S2 of the LP sets out the Council's settlement hierarchy to distinguish between the roles and functions of different settlements and to guide the location of future development.
7. The appeal site is not located within any Limits to Development boundary and sits within a cluster of properties with no services and facilities. It therefore falls within

the 'hamlet' settlement classification of Policy S2 of the LP. Accordingly, the appeal proposal must be considered in the context of the countryside and Policy S3.

8. Policy S3 of the LP states that land outside the Limits to Development is identified as countryside. A number of specified uses (a) to (s) are supported in the countryside, and the proposal falls under category (d) which states the re-use and adaptation of buildings for appropriate purposes including housing in accordance with the Settlement Hierarchy.
9. Policy S3 of the LP goes on to require any development that accords with the specified uses in (a) to (s) must meet six criteria to be supported in the countryside. Criterion (vi) requires that the proposed development is accessible, or will be made accessible, by a range of sustainable transport. I find LP Policies S2 and S3 to be consistent with the Framework, which seeks to actively manage patterns of growth.
10. The appeal site is located within a rural location and I acknowledge that sustainable transport solutions vary between urban and rural areas. However, I have been provided with limited information in respect of nearby services and facilities, and I observed from my site visit that there appeared to be no such facilities within the immediate vicinity.
11. I also noted that the B591 did not include footpaths or street lighting. These factors result in both walking and cycling being unattractive options to access any such services and facilities in comparison to car journeys.
12. As such, based on the evidence before me, the appeal site would not represent a sustainable location for residential development in respect of access to everyday services and facilities. Future residents would therefore be heavily reliant upon the use of the private car.
13. The appellant has drawn my attention to Policy S3(e) of the LP, which makes provision for the redevelopment of previously developed land (PDL) in accordance with Policy S2 of the LP. The main parties disagree on whether the lawful use of the appeal site is agricultural or equestrian and, consequently, whether it constitutes PDL. I have not been provided with evidence to clarify its lawful use and, therefore, I cannot be certain it meets the definition of PDL as contained within the Framework.
14. For these reasons Policy S3(e) of the LP is not applicable to the proposed development. Nevertheless, even if it were, the proposal would still need to satisfy criterion (vi) and no evidence has been submitted to demonstrate compliance with it.
15. Policies S5, HO10 and T3 of the Framework make provision for the development of isolated homes in the countryside where the proposal would involve the re-use of redundant or disused buildings, enhance its immediate setting and support sustainable patterns of movement. However, I have not been provided with compelling evidence to clearly conclude that the building is redundant or disused.
16. I acknowledge that the Framework promotes the development of under-utilised buildings. However, at the time of my visit it appeared the building has not ceased to function as an ancillary dwelling as it remains laid out, equipped and available

for residential occupation. Its kitchen, living accommodation and domestic facilities remain intact and it is capable of immediate ancillary use without material works. While it may presently be unoccupied, vacancy does not necessarily equate to disuse.

17. I note the fallback position cited in the appellant's case regarding Class Q, Part 3 of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended). However, given the case presented by the Council combined with the lack of evidence from the appellant to clearly demonstrate the appeal building is PDL and within a lawful use, I apportion the fallback position limited weight.
18. No traffic survey or transport statement has been submitted to substantiate the appellant's claim that vehicle movements associated with the proposed use of the building as a separate dwelling would be comparable to the vehicle movements associated with its use as a groom's or ancillary residential accommodation. As such I have limited substantive evidence before me that the proposed conversion to an independent residential dwelling would be comparable in terms of vehicle movements.
19. I acknowledge the proposed development would offer benefits, such as the creation of 1 no. additional dwelling, surface water mitigation measures and short-term economic benefits. I attribute limited weight to these. Neither has it been demonstrated that an independent residential use is essential for securing the long-term viability of the building, given that it is not clear that there has ever been a cessation in its use. Weighed against these is the conflict with social and environmental sustainability. Social, in that housing would not be provided in a location where services would be accessible, and environmental, due to the heavy reliance on the car of any future occupants. As such, there are no material considerations that outweigh the conflict with the development plan.
20. In view of all the above, I conclude that the appeal site is not accessible, or will be made accessible, by a range of sustainable transport. The appeal site would not therefore represent a suitable location for residential development and would be contrary to the Council's spatial strategy for new housing. The proposal therefore conflicts with LP Policies S2 and S3 and the Framework, the principal relevant provisions of which I have set out above.

Conclusion

21. I conclude that the proposal conflicts with the development plan and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given, the appeal is dismissed.

K Craddock

INSPECTOR